

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 43-002
Amendment to Title 5 of the Chickasaw Nation Code
(Manner of Selection of Judges)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Governor Bill Anoatubby is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations concerning the manner of selection of Judges of the Chickasaw Nation District Court, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 2, Article B, Section 5-202.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-202.3

MANNER OF SELECTION OF JUDGES

~~Judge or~~ Judges shall be appointed by the Supreme Court of the Chickasaw Nation and upon a vacancy occurring in a judicial office in the following manner:

1. Within thirty (30) days after a vacancy occurs the **Supreme** Court Clerk shall cause a notice of the vacancy stating the minimum qualifications, ~~salary,~~ **the date the application period will close,** and any other pertinent information to be published once in the Chickasaw Times. ~~and once each week for two (2) consecutive weeks in a newspaper of general circulation in the tribal jurisdiction. Copies of the notice may~~ shall be posted at the Chickasaw Nation Headquarter's ~~the nearest Agency of the Bureau of Indian Affairs, the Tribal Housing Authority office, the office of the Clerk of the Supreme Court, and such other places as~~ **directed by** the Supreme Court ~~shall direct~~. The notice shall direct that all inquiries, nominations and applications be directed to the **Supreme** Court Clerk's office who shall keep a permanent record of responses to such notices. **The Supreme Court Clerk may, at the request of the Supreme Court, publish the notice of vacancy in electronic or paper format in any publication or forum deemed appropriate by the Supreme Court including but not limited to bar or judicial journals,**

employment seeking forums or websites, social media, the Chickasaw Nation's website, or any other publication deemed appropriate by the Supreme Court.

2. ~~No sooner than twenty (20), nor more than thirty (30) days after the date on which last required notice was published or posted, the~~ **The Supreme** Court Clerk shall deliver the names and files of all persons nominated or applying for the judicial office to all members of the **Supreme Court** **within five (5) business days of the closing date stated in the notice of vacancy.**

3. The Supreme Court shall review the qualifications of the **applicants or** nominees; and may interview them ~~nominees~~ at the Court's discretion. In making a selection, the Supreme Court shall give preference to those candidates who:

a. have more formal education and experience in the legal field;

b. by written or oral examination conducted by the Supreme Court or by interview have shown that they are familiar with the Constitution, Code and Common laws of the Chickasaw Nation;

c. have demonstrated decision making ability.

4. If the nominee for the ~~J~~udicial ~~O~~ffice is appointed, the nominee shall be sworn into office by the Chief Justice, or the next ranking available Justice of the Supreme Court.

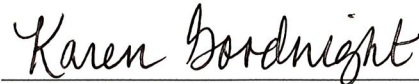
5. If the **applicant or** nominee(s) is not appointed, the Supreme Court shall either republish the notice and establish a new list of eligible candidates, or reconsider the candidates on the list gathered from the previous notice. The Supreme Court nomination process shall continue until **an applicant or** nominee is confirmed.

6. Upon the expiration of a judicial term of office, the ~~J~~udicial ~~O~~fficer is entitled, upon request filed with the **Supreme** Court Clerk not less than sixty (60) days prior to the expiration of his term, to be considered for confirmation to a new term.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on February 20, 2026 by a vote of 13 ayes, 0 nays, and 0 abstentions.

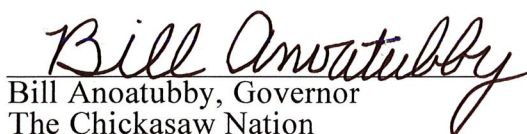


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

FEB 20 2026

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Explanation:

This resolution removes the requirement to post notice of judicial vacancies of the Chickasaw Nation District Court at certain locations and allows for electronically publishing notice of vacancies.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature